

HOUSE No. 1493**The Commonwealth of Massachusetts**

PRESENTED BY:

David F. DeCoste*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act allowing movable tiny houses as permanent residential dwellings and accessory dwelling units.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/16/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>3/2/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>3/2/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/2/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>3/2/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>3/2/2025</i>
<i>Jonathan D. Zlotnik</i>	<i>2nd Worcester</i>	<i>3/27/2025</i>
<i>Ryan M. Hamilton</i>	<i>15th Essex</i>	<i>5/6/2025</i>
<i>Andres X. Vargas</i>	<i>3rd Essex</i>	<i>5/6/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>5/6/2025</i>
<i>Shirley B. Arriaga</i>	<i>8th Hampden</i>	<i>6/27/2025</i>
<i>David Allen Robertson</i>	<i>19th Middlesex</i>	<i>8/19/2025</i>

HOUSE No. 1493

By Representative DeCoste of Norwell, a petition (accompanied by bill, House, No. 1493) of David F. DeCoste and others relative to using movable tiny houses as permanent residential dwellings and accessory dwelling units. Housing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act allowing movable tiny houses as permanent residential dwellings and accessory dwelling units.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to promote the use of movable tiny houses, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1A of chapter 40A of the General Laws, as amended by chapter 358
2 of the acts of 2020, is hereby further amended by inserting after the definition of “MBTA
3 Community” the following definition: -

4 “Movable tiny house”, a transportable dwelling unit built on a frame or chassis with not
5 more than 400 square feet, excluding lofts, projections from bay windows, open decks, porches
6 or exterior utility and storage compartments, intended for residential use on an individual house
7 lot where single-family dwellings are allowed or as an accessory dwelling unit.

8 SECTION 2. Section 3 of said chapter 40A, as so appearing, is hereby amended by
9 adding the following 5 paragraphs: -

10 The Massachusetts Department of Transportation, registry of motor vehicles and the
11 Secretary of the commonwealth shall establish a new category for movable tiny houses. The
12 registry of motor vehicles shall establish a process to apply for, issue and cancel certificates of
13 title for movable tiny houses that meet all additional safety and equipment requirements

14 established by the registry of motor vehicles; provided, however, that the registration fee
15 for said certificates of titles for movable tiny houses and manufactured movable tiny houses shall
16 be \$100.

17 A “movable tiny house” shall be permanently affixed to a chassis approved by the
18 Massachusetts Department of Transportation capable of carrying the total weight of the structure
19 and the exterior width shall not exceed any dimension prohibited by the Massachusetts
20 Department of Transportation for movement on a public way or highway; provided further, that a
21 “movable tiny house” shall be built in conformance with the regulations and standards of the
22 state building code but shall not be required to have insulation in walls, floors and total ceiling
23 assembly exceeding R13, R19 and R25 respectively.

24 A movable tiny house may be placed on a lot as defined in section 1A of chapter 40A of
25 the General Laws and lived in for not less than 180 days before an on-site inspection; provided,
26 however, that after 180 days, a movable tiny house shall be required to have an established
27 address, energy and water source and wastewater system; provided further, that after 180 days
28 the authority having jurisdiction of said lot shall provide for the inspection of the moveable tiny
29 house by either the local authority having jurisdiction or a certified member of a third-party
30 inspection agency and if the moveable tiny house meets the standards of the inspection a
31 certificate of occupancy shall be issued.

32 Notwithstanding any general or special law to the contrary, a city or town may establish
33 less restrictive rules and regulations than are permitted by this section; provided, however, that a
34 city or town shall not establish design criteria having the effect of excluding movable tiny
35 houses.

36 A city or town may incentivize hosted parking of movable tiny houses with tax
37 abatements or other tax incentives.